

TENTATIVE RULINGS
September 14, 2026

	Case Name	Tentative
101	2024-01372915 Ku vs. State Farm General Insurance Company	Motion for Summary Judgment and/or Adjudication Defendant State Farm General Insurance Company’s (“State Farm”) motion for summary judgment as to Plaintiffs Joseph Ku’s and Christine Ku’s First Amended Complaint (“FAC”) is granted. Defendant’s request for judicial notice is denied. It is unnecessary to ask the court to take judicial notice of materials previously filed in this case. A party may “simply call the court’s attention to such papers.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 9:53.1a.) The Court overrules Plaintiffs’ evidentiary objections numbered 1-8 and sustains their objections numbered 9-12. The Court declines to rule on Defendant’s evidentiary objections pursuant to Code Civ. Proc., § 437c(q). “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 854-855; <i>Union Bank v. Superior Court</i> (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; see <i>Scheiding v. Dinwiddie Constr. Co.</i> (1999) 69 Cal.App.4th 64, 80-81 [finding <i>Union Bank</i> rule only applies where discovery requests are broad enough to elicit all such information].) The evidence establishes that Plaintiffs’ claims are barred by the one-year statute of limitations set forth in Ins. Code, § 2071, which states in relevant part that “[n]o suit or action on this policy for the recovery of any claim shall be sustainable in any court of law or

equity unless all the requirements of this policy shall have been complied with, and unless commenced within 12 months next after inception of the loss.”

Plaintiffs reported their April 7, 2022, loss to State Farm on April 8, 2022. [UMF 5-6] On April 21, 2022, State Farm sent Plaintiffs a denial letter which included the following:

“The one-year period referred to does not include the time we take to investigate your claim. The time from the date of loss to the date you reported your claim to your agent does count in computing the amount of time that has already expired. The suit limitation period begins running again as of the date of this letter.”

[UMF 14-17] The letter additionally quoted the relevant portions of the insurance policy, which likewise stated that “[a]ny action must be started within one year after the occurrence of causing loss or damage. [UMF 4]

Accordingly, Plaintiffs’ deadline to file their Complaint was April 20, 2023.

The evidence does not support tolling of this deadline.

State Farm’s letter denying coverage, which was not submitted with Plaintiff’s FAC, but is now submitted as evidence in support of Defendant’s MSJ includes the following:

Our investigation and evaluation of your loss has determined that your damage is not covered by your policy.

You became aware of the problem when you found discoloration to the wood flooring in the dining room immediately outside the kitchen. Water was also seen coming through the seams of the wood floor in this same area when walked upon. Damage consists of heavy staining and deterioration of a section of baseboard, discoloration of a section of wood flooring, as well as mold on the drywall and cabinets.

Water was found leaking from the ice maker line at the back of the refrigerator. Our investigation found no evidence of any covered property damage resulting from a covered accidental direct physical loss. The predominate cause of the plumbing failure is due to one or a combination of wear, tear, deterioration and/or maintenance resulting in a continuous or repeated leakage or seepage of water.

Your policy HW2105 specifically excludes coverage for wear, tear, deterioration, continuous or repeated leakage or seepage or water, mold, workmanship, materials used in construction and maintenance...

(Defendant’s Ex. C [emphasis added].)

Plaintiffs allege in the FAC that they discovered water damage behind their refrigerator, and that the “denial letter attributed the plumbing failure solely to wear, tear, deterioration, or maintenance issues,” and neglected “to mention high water pressure as a cause of sudden water damages.” (FAC, ¶¶ 10, 12.)

Plaintiffs argue there is a distinction between the “wear, tear, deterioration and/or maintenance” to which Defendant attributed the loss, and the elevated water pressure that Plaintiffs discovered in October 2023 which also could have caused the loss. (PUMF 57; FAC, ¶¶ 12, 14.)

The Court disagrees. These causes of the damage are not mutually exclusive. Proper maintenance would ensure that the water pressure was within recommended limits for the plumbing in the house.

Contrary to Plaintiffs' arguments, Defendant's denial letter does not show that it misrepresented or concealed facts in order to justify tolling of the statute of limitations.

Plaintiffs rely on *Vu v. Prudential Property & Casualty Ins. Co.* (2001) 26 Cal.4th 1142, which is distinguishable as the insurance adjuster specifically represented the cost of repairs and how it was less than the policy deductible amount, advising the plaintiff not to file a claim. (*Id.* at 1152.)

Here, as the denial letter shows, State Farm informed Plaintiffs that their loss was not covered and that if they wished to file a claim they had one year to do so.

Plaintiffs additionally argue in opposition that the evidence does not establish that State Farm ever mailed the denial letter, referencing documents from State Farm's file pertaining to the claim. (See Plaintiffs' Ex. 4.) Each Plaintiff testified at their deposition that they did not recall receiving the denial letter. (Plaintiff's Exs. 6, 7.)

This argument lacks merit, as Plaintiffs specifically plead in the FAC that they relied on Defendant's denial letter of April 21, 2022 with respect to their claim. (FAC, ¶¶ 11-13, 41-43.) Plaintiffs cannot simultaneously claim reliance on a letter and also that they never received that letter.

Parties may rely on admissions of fact contained in the opposing party's pleadings as evidence. (*24 Hour Fitness, Inc. v. Sup.Ct.* (1998) 66 Cal.App.4th 1199, 1211; *Valerio v. Andrew Youngquist Const.* (2002) 103 Cal.App.4th 1264, 1271.) And, unequivocal admissions in pleadings are treated as "judicial admissions"—i.e., they are conclusive and cannot be controverted by the pleader. (See *Heater v. Southwood Psychiatric Ctr.* (1996) 42 Cal.App.4th 1068, 1079-1080, fn. 10.)

Plaintiffs additionally argue that even if the one-year statute of limitations bars the breach of contract and bad faith causes of action, it does not bar the misrepresentation and unfair competition claims as those are subject to different statutes of limitations.

But, Plaintiffs' allegations in their FAC in the 3rd-5th causes of action are all predicated on Defendant's denial of coverage. (See FAC, ¶¶ 34-38, 41-43, 2[sic]; see also *Prieto v. State Farm Fire & Casualty Co.* (1990) 225 Cal.App.3d 1188, 1196 (the court held that "plaintiffs' bad faith cause of action based on failure to pay benefits, and the emotional distress cause, which is merely a theoretical restatement of the same claim [] are governed by the one-year limitation prescribed by section 2071 for actions on the policy."); *Rosenberg-Wohl v. State Farm Fire & Casualty Co.* (2024) 16 Cal.5th 520, 536 ("we agree with these decisions that the prescribed limitations period applies to a cause of action for damages that is 'inextricably bound' [] to a denial of coverage, even if the cause of action is alleged to sound in tort instead of contract and a plaintiff alleges resulting damages going beyond the withheld policy proceeds.").)

Accordingly, the Court finds that Ins. Code, § 2071 applies to all of Plaintiffs' causes of action. The motion for summary judgment is granted.

Defendant shall give notice.